EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Application no. 3346/17
Mammad BALAMMADOV against Azerbaijan
and 8 other applications
(see appended table)

The European Court of Human Rights (Fifth Section), sitting on 30 June 2022 as a Committee composed of:

Stéphanie Mourou-Vikström, *President,*
Ivana Jelić,
Kateřina Šimáčková, *judges,*
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having regard to the above applications lodged on the various dates indicated in the appended table,

Having regard to the formal declarations accepting a friendly settlement of the cases,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The list of applicants and their representatives is set out in the appended table.

The applicants' complaints under Article 11 of the Convention concerning the unlawful or disproportionate measures against organisers and participants of public assemblies were communicated to the Azerbaijani Government ("the Government"). The applicants' other complaints based on the same facts were also communicated under other provisions of the Convention, given the relevant well-established case-law of the Court.

The Court received the friendly-settlement declarations, signed by the parties, under which the applicants agreed to waive any further claims against Azerbaijan in respect of the facts giving rise to these applications, subject to an undertaking by the Government to pay them the amounts detailed in the appended table. These amounts will be converted into the currency of the respondent State at the rate applicable on the date of payment, and will be payable within three months from the date of notification of the Court's

decision. In the event of failure to pay these amounts within the above-mentioned three-month period, the Government undertake to pay simple interest on them, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

The payment will constitute the final resolution of the cases.

THE LAW

Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single decision.

The Court takes note of the friendly settlement reached between the parties. It is satisfied that the settlement is based on respect for human rights as defined in the Convention and the Protocols thereto and finds no reasons to justify a continued examination of the applications.

In view of the above, it is appropriate to strike the cases out of the list.

For these reasons, the Court, unanimously,

Decides to join the applications;

Decides to strike the applications out of its list of cases in accordance with Article 39 of the Convention.

Done in English and notified in writing on 21 July 2022.

Viktoriya Maradudina Acting Deputy Registrar	Stéphanie Mourou-Vikström President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(unlawful or disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Other complaints under well-established case-law	Date of receipt of Government's declaration	Date of receipt of applicant's declaration	Amount awarded for non-pecuniary damage per applicant (in euros)[1]	Amount awarded for costs and expenses per application (in euros)[2]
1.	3346/17 23/12/2016	**Mammad Salman oglu BALAMMADOV** 1991	Ruslan MUSTAFAZADE Sumgayit Asabali MUSTAFAYEV Sumgayit	Art. 6 (1) – insufficient or manifestly unreasonable justification of court decisions (see *Gafgaz Mammadov v. Azerbaijan,* no. 60259/11, §§ 83-87, 15 October 2015, and *Huseynli and Others v. Azerbaijan*, nos. 67360/11 and 2 others, §§ 119-24, 11 February 2016), Art. 6 (1) - lack of public hearing (see *Hummatov v. Azerbaijan*, nos. 9852/03 and 13413/04, §§ 140-52, 29 November 2007), Art. 6 (3) (b) - adequate time/facilities for preparation of defence (see *Gafgaz Mammadov v. Azerbaijan,* cited above, §§ 76-82, and *Huseynli and Others v. Azerbaijan*, cited above, §§ 112-18), Art. 6 (3) (c) - own choice of legal assistance (see *Gafgaz Mammadov v. Azerbaijan,* cited above, §§ 88-94, and *Huseynli and Others v. Azerbaijan*, cited above, §§ 125-34). The applicant complains that he did not have adequate time and facilities to prepare his defence, that he was not allowed to have a lawyer of his own choice at the first-instance court and that the hearing at the first-instance court was in fact closed to the public. He also complains that the domestic courts dismissed his procedural requests for examination of pieces of evidence and that their judgment lacked adequate reasoning in that it relied only on	04/05/2022	31/05/2022	2,600	400 (to be paid directly to the representative Mr Ruslan Mustafazade's bank account)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Other complaints under well-established case-law	Date of receipt of Government's declaration	Date of receipt of applicant's declaration	Amount awarded for non-pecuniary damage per applicant (in euros)[1]	Amount awarded for costs and expenses per application (in euros)[2]
				the administrative-offence report and the statements of police officers.				
2.	3357/17 22/12/2016	**Nuru Sujaddin oglu NURUZADE** 1994	Ruslan MUSTAFAZADE Sumgayit Asabali MUSTAFAYEV Sumgayit	Art. 6 (1) – insufficient or manifestly unreasonable justification of court decisions (see *Gafgaz Mammadov v. Azerbaijan,* no. 60259/11, §§ 83-87, 15 October 2015, and *Huseynli and Others v. Azerbaijan*, nos. 67360/11 and 2 others, §§ 119-24, 11 February 2016), Art. 6 (1) - lack of public hearing (see *Hummatov v. Azerbaijan*, nos. 9852/03 and 13413/04, §§ 140-52, 29 November 2007), Art. 6 (3) (b) - adequate time/facilities for preparation of defence (see *Gafgaz Mammadov v. Azerbaijan,* cited above, §§ 76-82, and *Huseynli and Others v. Azerbaijan*, cited above, §§ 112-18), Art. 6 (3) (c) - own choice of legal assistance (see *Gafgaz Mammadov v. Azerbaijan,* cited above, §§ 88-94, and *Huseynli and Others v. Azerbaijan*, cited above, §§ 125-34). The applicant complains that he did not have adequate time and facilities to prepare his defence, that he was not allowed to have a lawyer of his own choice at the first-instance court and the hearing at the first-instance court was in fact held closed to the public. He also complains that the domestic courts dismissed his procedural requests for examination of pieces of evidence and that their judgment lacked adequate reasoning in that it relied only on the administrative-offence report and the statements of police officers.	04/05/2022	31/05/2022	2,600	400 (to be paid directly to the representative Mr Ruslan Mustafazade's bank account)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Other complaints under well-established case-law	Date of receipt of Government's declaration	Date of receipt of applicant's declaration	Amount awarded for non-pecuniary damage per applicant (in euros)[1]	Amount awarded for costs and expenses per application (in euros)[2]
3.	3373/17 20/12/2016	**Elton Fakhraddin oglu ALIYEV** 1992	Ruslan MUSTAFAZADE Sumgayit Asabali MUSTAFAYEV Sumgayit	Art. 6 (1) – insufficient or manifestly unreasonable justification of court decisions (see *Gafgaz Mammadov v. Azerbaijan,* no. 60259/11, §§ 83-87, 15 October 2015, and *Huseynli and Others v. Azerbaijan*, nos. 67360/11 and 2 others, §§ 119-24, 11 February 2016), Art. 6 (1) - lack of public hearing (see *Hummatov v. Azerbaijan*, nos. 9852/03 and 13413/04, §§ 140-52, 29 November 2007), Art. 6 (3) (b) - adequate time/facilities for preparation of defence (see *Gafgaz Mammadov v. Azerbaijan,* cited above, §§ 76-82, and *Huseynli and Others v. Azerbaijan*, cited above, §§ 112-18), Art. 6 (3) (c) - own choice of legal assistance (see *Gafgaz Mammadov v. Azerbaijan,* cited above, §§ 88-94, and *Huseynli and Others v. Azerbaijan*, cited above, §§ 125-34). The applicant complains that he did not have adequate time and facilities to prepare his defence, that he was not allowed to have a lawyer of his own choice at the first-instance court and that the hearing at the first-instance court was in fact held closed to the public. He also complains that the domestic courts dismissed his procedural requests for examination of pieces of evidence and that their judgment lacked adequate reasoning in that it relied only on the administrative-offence report and the statements of police officers.	04/05/2022	31/05/2022	2,600	400 (to be paid directly to the representative Mr Ruslan Mustafazade's bank account)
4.	3382/17 21/12/2016	**Togrul Mammad oglu IBRAHIM** 1994	Ruslan MUSTAFAZADE Sumgayit Asabali	Art. 6 (1) – insufficient or manifestly unreasonable justification of court decisions (see *Gafgaz Mammadov v. Azerbaijan,* no. 60259/11, §§ 83-87, 15 October 2015, and *Huseynli and Others v. Azerbaijan*, nos. 67360/11 and 2 others, §§ 119-24, 11 February 2016),	04/05/2022	31/05/2022	2,600	400 (to be paid directly to the representative

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Other complaints under well-established case-law	Date of receipt of Government's declaration	Date of receipt of applicant's declaration	Amount awarded for non-pecuniary damage per applicant (in euros)[1]	Amount awarded for costs and expenses per application (in euros)[2]
			MUSTAFAYEV Sumgayit	Art. 6 (1) - lack of public hearing (see *Hummatov v. Azerbaijan*, nos. 9852/03 and 13413/04, §§ 140-52, 29 November 2007), Art. 6 (3) (b) - adequate time/facilities for preparation of defence (see *Gafgaz Mammadov v. Azerbaijan,* cited above, §§ 76-82, and *Huseynli and Others v. Azerbaijan*, cited above, §§ 112-18), Art. 6 (3) (c) - own choice of legal assistance (see *Gafgaz Mammadov v. Azerbaijan,* cited above, §§ 88-94, and *Huseynli and Others v. Azerbaijan*, cited above, §§ 125-34). The applicant complains that he did not have adequate time and facilities to prepare his defence, that he was not allowed to have a lawyer of his own choice at the first-instance court and the hearing at the first-instance court was in fact held closed to the public. He also complains that the domestic courts dismissed his procedural requests for examination of pieces of evidence and that their judgment lacked adequate reasoning in that it relied only on the administrative-offence report and the statements of police officers.				Mr Ruslan Mustafazade's bank account)
5.	3982/17 21/12/2016	**Orkhan Nariman oglu JARCHIYEV** 1985	Ruslan MUSTAFAZADE Sumgayit Asabali MUSTAFAYEV Sumgayit	Art. 6 (1) – insufficient or manifestly unreasonable justification of court decisions (see *Gafgaz Mammadov v. Azerbaijan,* no. 60259/11, §§ 83-87, 15 October 2015, and *Huseynli and Others v. Azerbaijan*, nos. 67360/11 and 2 others, §§ 119-24, 11 February 2016), Art. 6 (1) - lack of public hearing (see *Hummatov v. Azerbaijan*, nos. 9852/03 and 13413/04, §§ 140-52, 29 November 2007),	04/05/2022	31/05/2022	2,600	400 (to be paid directly to the representative Mr Ruslan Mustafazade's bank account)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Other complaints under well-established case-law	Date of receipt of Government's declaration	Date of receipt of applicant's declaration	Amount awarded for non-pecuniary damage per applicant (in euros)[1]	Amount awarded for costs and expenses per application (in euros)[2]
				Art. 6 (3) (b) - adequate time/facilities for preparation of defence (see *Gafgaz Mammadov v. Azerbaijan,* cited above, §§ 76-82, and *Huseynli and Others v. Azerbaijan*, cited above, §§ 112-18), Art. 6 (3) (c) - own choice of legal assistance (see *Gafgaz Mammadov v. Azerbaijan,* cited above, §§ 88-94, and *Huseynli and Others v. Azerbaijan*, cited above, §§ 125-34). The applicant complains that he did not have adequate time and facilities to prepare his defence, that he was not allowed to have a lawyer of his own choice at the first-instance court and that the hearing at the first-instance court was in fact held closed to the public. He also complains that the domestic courts dismissed his procedural requests for examination of pieces of evidence and that their judgment lacked adequate reasoning in that it relied only on the administrative-offence report and the statements of police officers.				
6.	7967/17 10/01/2017	**Ruslan Abdulkhan oglu GARAYEV** 1989	Ruslan MUSTAFAZADE Sumgayit Asabali MUSTAFAYEV Sumgayit	Art. 6 (1) – insufficient or manifestly unreasonable justification of court decisions (see *Gafgaz Mammadov v. Azerbaijan,* no. 60259/11, §§ 83-87, 15 October 2015, and *Huseynli and Others v. Azerbaijan*, nos. 67360/11 and 2 others, §§ 119-124, 11 February 2016), Art. 6 (1) - lack of public hearing (see *Hummatov v. Azerbaijan*, nos. 9852/03 and 13413/04, §§ 140-152, 29 November 2007), Art. 6 (3) (b) - adequate time/facilities for preparation of defence (see *Gafgaz Mammadov v. Azerbaijan,* cited above, §§ 76-82, and *Huseynli and Others v. Azerbaijan*, cited above, §§ 112-118),	04/05/2022	31/05/2022	2,600	400 (to be paid directly to the representative Mr Ruslan Mustafazade's bank account)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Other complaints under well-established case-law	Date of receipt of Government's declaration	Date of receipt of applicant's declaration	Amount awarded for non-pecuniary damage per applicant (in euros)[1]	Amount awarded for costs and expenses per application (in euros)[2]
				Art. 6 (3) (c) - own choice of legal assistance (see *Gafgaz Mammadov v. Azerbaijan,* cited above, §§ 88-94, and *Huseynli and Others v. Azerbaijan*, cited above, §§ 125-134). The applicant complains that he did not have adequate time and facilities to prepare his defence, that he was not allowed to have a lawyer of his own choice in the proceedings before the first-instance court, and that the hearing at the first-instance court was in fact closed to the public. He also complains that the domestic courts dismissed his procedural requests for examination of pieces of evidence and that their judgments lacked adequate reasoning in that they relied only on the administrative-offence report and the statements of police officers.				
7.	7981/17 10/01/2017	**Ulfat Khalid oglu HASANGARAYEV** 1994	Ruslan MUSTAFAZADE Sumgayit Asabali MUSTAFAYEV Sumgayit	Art. 6 (1) – insufficient or manifestly unreasonable justification of court decisions (see *Gafgaz Mammadov v. Azerbaijan,* no. 60259/11, §§ 83-87, 15 October 2015, and *Huseynli and Others v. Azerbaijan*, nos. 67360/11 and 2 others, §§ 119-124, 11 February 2016), Art. 6 (1) - lack of public hearing (see *Hummatov v. Azerbaijan*, nos. 9852/03 and 13413/04, §§ 140-152, 29 November 2007), Art. 6 (3) (b) - adequate time/facilities for preparation of defence (see *Gafgaz Mammadov v. Azerbaijan,* cited above, §§ 76-82, and *Huseynli and Others v. Azerbaijan*, cited above, §§ 112-118), Art. 6 (3) (c) - own choice of legal assistance (see *Gafgaz Mammadov v. Azerbaijan,* cited above, §§ 88-94, and *Huseynli and Others v. Azerbaijan*, cited above, §§ 125-134).	04/05/2022	31/05/2022	2,600	400 (to be paid directly to the representative Mr Ruslan Mustafazade's bank account)

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				The applicant complains that he did not have adequate time and facilities to prepare his defence, that he was not allowed to have a lawyer of his own choice at the first-instance court, and that the hearing at the first-instance court was in fact held closed to the public. He also complains that the domestic courts dismissed his procedural requests for examination of pieces of evidence and that their judgments lacked adequate reasoning in that they relied only on the administrative-offence report and the statements of police officers.				
8.	8011/17 10/01/2017	**Vusal Hasan oglu TAGIZADE** 1990	Ruslan MUSTAFAZADE Sumgayit Asabali MUSTAFAYEV Sumgayit	Art. 6 (1) – insufficient or manifestly unreasonable justification of court decisions (see *Gafgaz Mammadov v. Azerbaijan,* no. 60259/11, §§ 83-87, 15 October 2015, and *Huseynli and Others v. Azerbaijan*, nos. 67360/11 and 2 others, §§ 119-124, 11 February 2016), Art. 6 (3) (b) - adequate time/facilities for preparation of defence (see *Gafgaz Mammadov v. Azerbaijan,* cited above, §§ 76-82, and *Huseynli and Others v. Azerbaijan*, cited above, §§ 112-118), Art. 6 (3) (c) - own choice of legal assistance (see *Gafgaz Mammadov v. Azerbaijan,* cited above, §§ 88-94, and *Huseynli and Others v. Azerbaijan*, cited above, §§ 125-134). The applicant complains that he did not have adequate time and facilities to prepare his defence and that he was not allowed to have a lawyer of his own choice in the proceedings before the first-instance court. He also complains that the domestic courts dismissed his procedural requests for examination of pieces of evidence and for calling and hearing his witnesses and that their judgments lacked adequate reasoning.	04/05/2022	31/05/2022	2,600	400 (to be paid directly to the representative Mr Ruslan Mustafazade's bank account)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Other complaints under well-established case-law	Date of receipt of Government's declaration	Date of receipt of applicant's declaration	Amount awarded for non-pecuniary damage per applicant (in euros)[1]	Amount awarded for costs and expenses per application (in euros)[2]
9.	11814/17 21/01/2017	**Sahib Jabrayil oglu RUSTAMLI** 1956	Ruslan MUSTAFAZADE Sumgayit Asabali MUSTAFAYEV Sumgayit	Art. 6 (1) – insufficient or manifestly unreasonable justification of court decisions (see *Gafgaz Mammadov v. Azerbaijan,* no. 60259/11, §§ 83-87, 15 October 2015, and *Huseynli and Others v. Azerbaijan*, nos. 67360/11 and 2 others, §§ 119-124, 11 February 2016), Art. 6 (3) (b) - adequate time/facilities for preparation of defence (see *Gafgaz Mammadov v. Azerbaijan,* cited above, §§ 76-82, and *Huseynli and Others v. Azerbaijan*, cited above, §§ 112-118), Art. 6 (3) (c) - free legal assistance (see *Gafgaz Mammadov v. Azerbaijan,* cited above, §§ 88-94, and *Huseynli and Others v. Azerbaijan*, cited above, §§ 125-134). The applicant complains that he did not have adequate time and facilities to prepare his defence, since he had never been provided with the case file documents such as administrative offence report, and that he was not provided with free legal assistance. He also complains that the domestic courts dismissed his procedural requests for examination of pieces of evidence and that their judgments lacked adequate reasoning.	04/05/2022	31/05/2022	2,600	400 (to be paid directly to the representative Mr Ruslan Mustafazade's bank account)

[1] Plus any tax that may be chargeable to the applicants.
[2] Plus any tax that may be chargeable to the applicants.